

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, MAY 29, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**VINCENTY v. CITY OF VALLEJO, ET AL.
Case No. CU24-01785**

Defendant City of Vallejo's Motion for Summary Judgment/Adjudication

TENTATIVE RULING

Defendant CITY OF VALLEJO's ("CITY") motion for summary judgment is DENIED. CITY's motion for summary adjudication as to Plaintiff's claim of noneconomic damages is DENIED.

Plaintiff contends on March 27, 2023, he was injured when his motorcycle hit a pothole on a public street located in the vicinity of the intersection of La Cadena and Tuolumne Streets in Vallejo. (Complaint ¶¶ 14, 15; UMF 3 and 4.)

CITY contends that it does not have any records of complaints concerning a pothole at the location at the time of the incident. (UMF 14.) However, CITY acknowledges that a repaired pothole now exists at the location. (UMF 16.) CITY has no record of repairing a pothole at the location. (UMF 17.) The last pothole repaired at the location per CITY records was in 2019. (UMF 19.)

Plaintiff provides an expert opinion that on April 14, 2023, a pothole existed at the intersection of La Cadena and Tuolumne that measured 17 inches in length and 14 inches in width with a depth ranging from 2-7/8" to 3-3/8" in the vicinity of the accident next to the manhole. (Moore Decl., ¶¶ 9-12.) The photo of the pothole shows it is in an area that appears to have been previously repaired and adjacent to a manhole. (Moore Decl., Inspection Report, photo 9.) But, no evidence is presented that Plaintiff ever confirmed that the pothole identified by Mr. Moore was actually the pothole Plaintiff

claims to have hit. Plaintiff apparently returned to the location of his accident to take photos of the pothole on his phone, but has been through 75 to 100 phones since then, and apparently lost the photos before they could be produced in discovery. (UMF 10; Vincenty Depo 133:14-22.)

Mr. Moore does not provide an expert opinion as to how long potholes take to form.¹

Plaintiff VINCENTY routinely travels the route on which he was injured, traveling by car 20 times the week prior to the incident. (UMF 22.) It is a route that Vincenty takes "... all the time, thousands of times: Down Tuolumne and then left on Fleming to my house. There's only one turn that I have to take." (Vincenty Depo, 30:21-31:3.) It is undisputed the first time Plaintiff saw the pothole was the day of the incident when he was test-driving the motorcycle. (UMF 23; Vincenty Depo., 40:24-41:1.) VINCENTY has lived on Fleming Avenue for 50 years except between 2005 and 2017. (Vincenty Deposition, 16:4-14.)

Evidence exists that the CITY was aware of complaints of other potholes located in other areas on Tuolumne Street but not in the area in question.

CITY relies on a complaint-driven inspection and repair system utilizing a website for the public to complain about streets or through telephone calls to CITY's maintenance system. (UMF 13; Gamez "Corrected" Declaration, ¶ 4.). While CITY engages a third party consultant to conduct a pavement-condition assessment known as a "PCI" or "PRTAP" report every three years, it does not use the report to identify and address potholes. (Herrera Depo, 130:1-12.)

Evidentiary Objections

CITY's objections to Mr. Moore's declaration and photos of a sizeable pothole on April 14, 2023, at or near the intersection of Tuolumne and La Cadena are **OVERRULED**. The photographs are relevant, circumstantial evidence of the existence of a pothole in the vicinity of the accident as described by Plaintiff on March 27, 2023.

Motion for Summary Judgment

A defendant is entitled to summary judgment if it can show that there is no triable issue as to any material fact. The defendant bears the initial burden of establishing that the plaintiff's cause of action has no merit by showing that the plaintiff cannot prove one or

¹ Mr. Moore's opinions regarding the formation of potholes based upon unidentified and unauthenticated Google photos lacks foundation and is speculative. (*Strobel v. Johnson & Johnson* (2021) 70 Cal.App.5th 796 [expert's opinion in opposition to motion for summary judgment based upon case-specific hearsay properly excluded]; *People v. Sanchez* (2016) 63 Cal.4th 665, 676.)

more elements of his cause of action. If a defendant meets this burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of fact. (CCP § 437c(p)(2).)

To proceed on a claim of dangerous condition of public property, a plaintiff must prove that a public employee's negligence or misconduct created the dangerous condition, or that the public entity had actual or constructive notice of the condition a sufficient time before the injury to protect against it. (*Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 519.)

Plaintiff does not have evidence the pothole was created by action by a CITY employee.²

At issue is whether the CITY had actual or constructive notice of the dangerous condition.

CITY presents undisputed evidence that it did not have actual notice of a pothole at the intersection of La Cadena and Tuolumne at the time of Plaintiff's accident.

To establish constructive notice, a plaintiff must show the dangerous condition existed for such a period of time and was of such an obvious nature that the public entity in exercising due care should have discovered the condition and its dangerous character. It is not enough to show that the condition can sometimes occur. (Govt. Code, § 835.2; *Restivo v. City of Petaluma* (2025) 111 Cal.App.5th 267, 275; *Maksimow v. City of South Lake Tahoe* (2024) 106 Cal.App.5th 514, 524; *Martinez, supra*, at pp. 519–520.) Constructive notice may be imputed if an obvious danger existed for an adequate period of time before the accident to have permitted the public entity in the exercise of due care to discover and remedy the situation had they been operating under a reasonable plan of inspection. (*Maksimow, supra* at p. 525; *Briggs v. State of California* (1971) 14 Cal.App.3d 489, 495.)

Here, CITY establishes that Plaintiff himself drove this same route “1,000” times and as much as 20 times the week of his accident and never saw a pothole. With this evidence, the burden shifted to Plaintiff to establish a triable issue of fact that the pothole was obvious and existed for a period of time that it could have been located with due care.

Plaintiff cites to the interrogatory responses of dismissed Defendants Rosa Contreras and Miguel Monchez. The responses confirm that neither Ms. Contreras nor Mr. Monchez notified CITY of potholes at the location of the incident, but notes the following response:

² Plaintiff makes a half-hearted argument based on its expert's declaration that the City could have created the pothole. (Opposition, p. 11.) The expert's “plausible” opinion has no foundation and is speculative. (Moore Decl., ¶ 17.)

SPECIAL INTERROGATORY No. 7:

When did you first become aware of pothole(s) at the LOCATION OF THE INCIDENT.

RESPONSE TO SPECIAL INTERROGATORY NO. 7:

The exact time is unknown. It had been there along with several potholes on the street for some time.

(Plaintiff's Response to UMF 12-14; Flinders, Decl., Exhibit 8.)

No case establishes that a complaint-driven inspection program is or is not a reasonable inspection program as a matter of law. CITY's program, however, is reactive and not proactive. Government Code section 835.2 ties constructive notice to a reasonably adequate inspection system in which the public entity "should have discovered the condition and its dangerous character." Given the existence of the pothole "for some time," Plaintiff establishes that a triable issue of fact exists as to whether the CITY had constructive notice of the pothole.

Motion for Summary Adjudication

Civil Code section 3333.4 bars recovery of noneconomic damages by motorists who are injured while using or operating an uninsured motor vehicle if the injured person was the owner of a vehicle involved in the accident and the vehicle was not insured as required by the financial responsibility law of this state. This bar does not apply if either the vehicle itself is insured by its owner or the driver himself is personally insured. (*Goodson v. Perfect Fit Enters.* (1998) 67 Cal.App.4th 508, 512; Vehicle Code sections 16020, 16021.) CITY presents only the evidence that Plaintiff did not personally carry insurance, but fails to establish that there is no triable issue of fact as to whether the motorcycle which Plaintiff was actually driving was insured by the third party that allowed him to test drive it. (Vincenty Depo., 30:12-20.)

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002